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U.S. District Court - District of Colorado
District of Colorado (Denver)
CIVIL DOCKET FOR CASE #: 1:10-cv-02529-WJM-KMT

Guara v. City of Trinidad
Assigned to: Judge William J. Martinez
Referred to: Magistrate Judge Kathleen M. Tafoya
Cause: 42:1983 Civil Rights Act

Date Filed: 10/16/2010
Date Terminated: 10/30/2012
Jury Demand: Both
Nature of Suit: 442 Civil Rights: Jobs
Jurisdiction: Federal Question

Plaintiff**David Guara**

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TERMINATED: 01/07/2013

V.

Defendant

City of Trinidad
a City Municipality

represented by **J. Andrew Nathan**
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Defendant

City of Trinidad Fire Department
TERMINATED: 06/07/2012

represented by **J. Andrew Nathan**
 (See above for address)
ATTORNEY TO BE NOTICED

Marni Nathan Kloster
 (See above for address)
ATTORNEY TO BE NOTICED

Date Filed	#	Docket Text
10/16/2010	<u>1</u>	COMPLAINT against City of Trinidad and City of Trinidad Fire Department (Filing fee \$ 350, Receipt Number 32145) Summons Not Issued, filed by David Guara. (Attachments: # <u>1</u> Civil Cover Sheet, # <u>2</u> Receipt)(lyg,) (Entered: 10/18/2010)
10/19/2010	<u>2</u>	ORDER OF REFERENCE TO MAGISTRATE JUDGE: REFERRING CASE to Magistrate Judge Kathleen M. Tafoya by Judge Marcia S. Krieger on 10/19/10. (msksec,) (Entered: 10/19/2010)
10/21/2010	<u>3</u>	ORDER Setting Scheduling Conference for 1/18/2011 at 09:30 AM in Courtroom C201 before Magistrate Judge Kathleen M. Tafoya, by Magistrate Judge Kathleen M. Tafoya on 10/21/2010. (wjc,) (Entered: 10/21/2010)
10/21/2010	<u>4</u>	Amended ORDER Setting Scheduling Conference for 1/18/2011 at 09:30 AM in Courtroom C201 before Magistrate Judge Kathleen M. Tafoya, by Magistrate Judge Kathleen M. Tafoya on 10/21/2010. (wjc,) (Entered: 10/21/2010)
10/25/2010	<u>5</u>	ORDER REGARDING CUSTODY OF EXHIBITS AND DEPOSITIONS USED IN EVIDENTIARY HEARINGS AND TRIALS: Any exhibits and depositions used during evidentiary hearings or trials, counsel for the parties shall retrieve the originals of such exhibits and depositions from the Court following the evidentiary hearing or trial, and shall retain same for 60 days beyond the later of the time to appeal or conclusion of any appellate proceedings. The Court will retain its copy of the exhibits for the same time period after which the documents will be destroyed. by Judge Marcia S. Krieger on 10/25/10. (mskcd) (Entered: 10/25/2010)
11/16/2010	<u>6</u>	ANSWER to <u>1</u> Complaint by City of Trinidad, City of Trinidad Fire Department.(Kloster, Marni) (Entered: 11/16/2010)
01/12/2011	<u>7</u>	Proposed Scheduling Order by Plaintiff David Guara. (Fasing, Gregory) (Entered: 01/12/2011)
01/18/2011	<u>8</u>	Minute Entry for Scheduling Conference held on 1/18/2011 before Magistrate Judge Kathleen M. Tafoya. Discovery due by 8/19/2011. Dispositive Motions due by 11/19/2011. Settlement Conference set for 8/30/2011 01:30 PM in Courtroom C201 before Magistrate Judge Kathleen M. Tafoya. (Court Reporter: FTR - Nick Richards) (kmtcd) (Entered: 01/18/2011)

01/18/2011	9	SCHEDULING ORDER by Magistrate Judge Kathleen M. Tafoya on 1/18/2011. (kmtcd) (Entered: 01/18/2011)
01/18/2011	10	ORDER Setting Settlement Conference for 8/30/2011 at 01:30 PM in Courtroom C201 before Magistrate Judge Kathleen M. Tafoya, by Magistrate Judge Kathleen M. Tafoya on 01/18/2011. (wjc,) (Entered: 01/19/2011)
01/19/2011	11	TRIAL PREPARATION ORDER-CIVIL by Judge Marcia S. Krieger on 1/19/11. (msksec,) (Entered: 01/19/2011)
02/09/2011	12	REASSIGNING JUDGE. This action is reassigned to Judge William J. Martinez, upon his recent appointment to the court. All future pleadings should reference Judge Martinez's initials at the end of the civil action number (such as 08-cv-00001-WJM). Unless otherwise ordered, the dates and times for all previously scheduled matters will be maintained and will now be handled by Judge Martinez in Courtroom A601. His chambers are located in Room A641 of the Alfred A. Arraj U. S. Courthouse. His chambers telephone number is 303-335-2805. TEXT ONLY ENTRY - NO DOCUMENT (wjc,) (Entered: 02/09/2011)
02/09/2011	13	MINUTE ORDER: A Final Pretrial Conference is set for January 19, 2012 at 9:30 AM in Courtroom C201 before Magistrate Judge Kathleen M. Tafoya. A Final Pretrial Order shall be prepared by the parties and submitted to the court no later than five business days before the Final Pretrial Conference. By Magistrate Judge Kathleen M. Tafoya on 2/9/11. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED(kmtlc1) (Entered: 02/09/2011)
02/11/2011	14	Stipulated MOTION for Protective Order by Defendants City of Trinidad, City of Trinidad Fire Department, Plaintiff David Guara. (Attachments: # 1 Proposed Document Stipulation and Protective Order)(Kloster, Marni) (Entered: 02/11/2011)
02/14/2011	15	MEMORANDUM regarding 14 Stipulated MOTION for Protective Order filed by David Guara, City of Trinidad Fire Department, City of Trinidad. Motion referred to Magistrate Judge Kathleen M. Tafoya by Judge William J. Martinez on 02/14/2011. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (WJMSEC) (Entered: 02/14/2011)
02/16/2011	16	MINUTE ORDER granting 14 Stipulated Motion for Entry of Stipulation and Protective Order. The proposed protective order will be entered. By Magistrate Judge Kathleen M. Tafoya on 2/16/2011.TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (kmtlc2) (Entered: 02/16/2011)
02/16/2011	17	STIPULATION AND PROTECTIVE ORDER by Magistrate Judge Kathleen M. Tafoya on 2/16/2011. (erv,) (Entered: 02/16/2011)
02/18/2011	18	ORDER The parties are directed to confer and to file a Joint Status Report due by 2/28/2011. by Judge William J. Martinez on 2/18/2011. (erv,) (Entered: 02/18/2011)
02/28/2011	19	Joint STATUS REPORT by Plaintiff David Guara. (Fasing, Gregory) (Entered: 02/28/2011)
07/01/2011	20	MOTION to Strike <i>Certain Experts Disclosed by Plaintiff</i> by Defendants City of Trinidad, City of Trinidad Fire Department. (Attachments: # 1 Exhibit A - June 20, 2011 Letter, # 2 Exhibit B - Plaintiff's Expert Witness Disclosures, # 3 Exhibit C - CCRD Determination, dated 3/12/10, # 4 Exhibit D - CCRD Determination, dated 6/3/09) (Kloster, Marni) (Entered: 07/01/2011)
07/05/2011	21	MEMORANDUM regarding 20 MOTION to Strike <i>Certain Experts Disclosed by Plaintiff</i> filed by City of Trinidad Fire Department, City of Trinidad. Motion referred to Magistrate Judge Kathleen M. Tafoya by Judge William J. Martinez on 07/05/2011. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (wjmsec,) (Entered: 07/05/2011)

07/25/2011	22	RESPONSE to 20 MOTION to Strike <i>Certain Experts Disclosed by Plaintiff</i> filed by Plaintiff David Guara. (Fasing, Gregory) (Entered: 07/25/2011)
08/04/2011	23	REPLY to Response to 20 MOTION to Strike <i>Certain Experts Disclosed by Plaintiff</i> filed by Defendants City of Trinidad, City of Trinidad Fire Department. (Attachments: # 1 Exhibit E - Affidavit of Steven Chavez, # 2 Exhibit F - Defendants' Request for Production No. 9 to Plaintiff)(Kloster, Marni) (Entered: 08/04/2011)
08/05/2011	24	MOTION to Compel by Defendants City of Trinidad, City of Trinidad Fire Department. (Attachments: # 1 Exhibit A Written Discovery to Plaintiff, # 2 Exhibit B March 8, 2011 Email, # 3 Exhibit C March 17, 2011 Email, # 4 Exhibit D Plaintiff's Responses to Requests for Production, # 5 Exhibit E April 4, 2011 Email, # 6 Exhibit F April 5, 2011 Email, # 7 Exhibit G April 8, 2011 Email, # 8 Exhibit H April 12, 2011 Letter, # 9 Exhibit I Plaintiff's Deposition Testimony, # 10 Exhibit J June 3, 2011 Letter, # 11 Exhibit K June 23, 2011 Letter, # 12 Exhibit L July 1, 2011 Letter, # 13 Exhibit M July 1, 2011 Letter, # 14 Exhibit N July 11, 2011 Email, # 15 Exhibit O July 11, 2011 Letter, # 16 Exhibit P July 12, 2011 Letter, # 17 Exhibit Q July 18, 2011 Letter, # 18 Exhibit R July 26, 2011 Letter, # 19 Exhibit S July 27, 2011 Letter, # 20 Exhibit T August 2, 2011 Letter, # 21 Exhibit U June 23, 2011 Letter, # 22 Exhibit V June 27, 2011 Email)(Kloster, Marni) (Entered: 08/05/2011)
08/05/2011	25	MEMORANDUM regarding 24 MOTION to Compel filed by City of Trinidad Fire Department, City of Trinidad. Motion referred to Magistrate Judge Kathleen M. Tafoya by Judge William J. Martinez on 08/05/2011. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (wjmsec,) (Entered: 08/05/2011)
08/09/2011	26	MINUTE ORDER Setting Hearing on Motion: A Motion Hearing is set for August 30, 2011 at 10:00 AM in Courtroom C201 before Magistrate Judge Kathleen M. Tafoya regarding 24 MOTION to Compel. Plaintiff shall file his response no later than August 18, 2011. Defendants shall file their reply no later than August 24, 2011. By Magistrate Judge Kathleen M. Tafoya on 8/9/11. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED(kmtlc1) (Entered: 08/09/2011)
08/16/2011	27	RESPONSE to 24 MOTION to Compel filed by Plaintiff David Guara. (Fasing, Gregory) (Entered: 08/16/2011)
08/16/2011	28	NOTICE Regarding Defendants Motion to Compel 24 by Defendants City of Trinidad, City of Trinidad Fire Department (Kloster, Marni) (Modified on 8/17/2011 corrected link to 24)(erv,). (Entered: 08/16/2011)
08/19/2011	29	NOTICE <i>Regarding Defendants' Motion to Compel (2nd)</i> by Defendants City of Trinidad, City of Trinidad Fire Department (Kloster, Marni) (Entered: 08/19/2011)
08/23/2011	30	REPLY to Response to 24 MOTION to Compel filed by Defendants City of Trinidad, City of Trinidad Fire Department. (Attachments: # 1 Exhibit W - August 15, 2011 Letter, # 2 Exhibit X - August 16, 2011 Letter, # 3 Exhibit Y - April 4, 2011 Letter, # 4 Exhibit Z - Plaintiff's Deposition Testimony)(Kloster, Marni) (Entered: 08/23/2011)
08/30/2011	31	MINUTE ENTRY for proceedings held before Magistrate Judge Kathleen M. Tafoya: Settlement Conference held on 8/30/2011, no settlement was reached as to any claims in this action. (erv,) (Entered: 09/01/2011)

08/30/2011	32	MINUTE ENTRY for Motion Hearing held on 8/30/2011 before Magistrate Judge Kathleen M. Tafoya, granting in part and denying in part 24 Motion to Compel. The motion is granted with regards to the provisions surrounding the video and audio recordings of the depositions of Captain's Trujillo and Sandoval and denied as to the attorney fees requested. For further information, please see attached minutes. (FTR: Nick Richards) (kmtcd) (Entered: 09/08/2011)
09/09/2011	33	MOTION for Extension of Time to <i>Provide Recordings</i> by Plaintiff David Guara. (Fasing, Gregory) (Entered: 09/09/2011)
09/12/2011	34	MEMORANDUM regarding 33 MOTION for Extension of Time to <i>Provide Recordings</i> filed by David Guara. Motion referred to Magistrate Judge Kathleen M. Tafoya by Judge William J. Martinez on 09/12/2011. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (wjmsec,) (Entered: 09/12/2011)
09/12/2011	35	MINUTE ORDER granting 33 Motion for Extension of Time to Provide Recordings. Plaintiff shall provide copies of the video recorded depositions of Capt. Ralph Trujillo and Capt. Robert Sandoval no later than September 16, 2011. If the technician selected by the Plaintiff is unable to complete the project in a timely manner, the Plaintiff shall engage other technicians to accomplish the task. No further extensions will be granted. By Magistrate Judge Kathleen M. Tafoya on 9/12/11. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED(kmtlc1) (Entered: 09/12/2011)
11/07/2011	36	MOTION to Seal <i>Certain Exhibits</i> by Defendants City of Trinidad, City of Trinidad Fire Department. (Attachments: # 1 Proposed Order (PDF Only) Order)(Kloster, Marni) (Entered: 11/07/2011)
11/07/2011	37	SEALED DOCUMENT by Defendants City of Trinidad, City of Trinidad Fire Department. (Attachments: # 1 Exhibit A-2, # 2 Exhibit A-3)(Kloster, Marni) (Entered: 11/07/2011)
11/07/2011	38	MOTION for Summary Judgment by Defendants City of Trinidad, City of Trinidad Fire Department. (Attachments: # 1 Exhibit A, Part 1 of 3, # 2 Exhibit A, Part 2 of 3, # 3 Exhibit A, Part 3 of 3, # 4 Exhibit B, # 5 Exhibit C, # 6 Exhibit D, # 7 Exhibit E, # 8 Exhibit F, # 9 Exhibit G, # 10 Exhibit H, # 11 Exhibit I, # 12 Exhibit J, # 13 Exhibit L, # 14 Exhibit M, # 15 Exhibit N, # 16 Exhibit O, # 17 Exhibit P, # 18 Exhibit Q, # 19 Exhibit R, # 20 Exhibit S, # 21 Exhibit T, # 22 Exhibit U, # 23 Exhibit V, # 24 Exhibit W, # 25 Exhibit X, # 26 Exhibit Y, # 27 Exhibit Z, # 28 Exhibit A-1)(Kloster, Marni) (Entered: 11/07/2011)
11/07/2011	39	MEMORANDUM regarding 36 MOTION to Seal <i>Certain Exhibits</i> filed by City of Trinidad Fire Department, City of Trinidad. Motion referred to Magistrate Judge Kathleen M. Tafoya by Judge William J. Martinez on 11/07/2011. Text Only Entry (wjmsec,) (Entered: 11/07/2011)
11/07/2011	40	Exhibits K A-2, and A-3 in Support of 38 MOTION for Summary Judgment by Defendants City of Trinidad, City of Trinidad Fire Department. (Public Entry for SEALED Document 37 , filed 11/7/2011) TEXT ENTRY ONLY - NO DOCUMENT ATTACHED (erv,) (Entered: 11/08/2011)
11/08/2011	41	ORDER granting in part and denying in part 20 Defendants Motion to Strike Certain Experts Disclosed by Plaintiff 20 is GRANTED in part and DENIED in part as moot. Defendants motion to strike the Rule 26(a)(2)(C) disclosure Steve Chavez is GRANTED. Defendants motion to strike the Rule 26(a)(2)(C) disclosures of Beverly Miller and Terry Vargas is DENIED as moot. by Magistrate Judge Kathleen M. Tafoya on 11/8/2011.(erv,) (Entered: 11/08/2011)

11/15/2011	42	MINUTE ORDER granting 36 Motion to File Exhibits Under Seal. Document 37 shall remain under seal pending further order of the Court. By Magistrate Judge Kathleen M. Tafoya on 11/15/11. Text Only Entry(kmtlc1) (Entered: 11/15/2011)
11/24/2011	43	MOTION for Extension of Time to <i>FILE BRIEF OPPOSING MOTION FOR SUMMARY JUDGMENT</i> by Plaintiff David Guara. (Fasing, Gregory) (Entered: 11/24/2011)
11/25/2011	44	MEMORANDUM regarding 43 MOTION for Extension of Time to <i>FILE BRIEF OPPOSING MOTION FOR SUMMARY JUDGMENT</i> filed by David Guara. Motion referred to Magistrate Judge Kathleen M. Tafoya by Judge William J. Martinez on 11/25/2011. Text Only Entry (wjmssec,) (Entered: 11/25/2011)
11/28/2011	45	MINUTE ORDER granting 43 Motion for Extension of Time to File Brief Opposing Motion for Summary Judgment. Plaintiff shall respond to Defendants' Motion for Summary Judgment no later than January 31, 2012. By Magistrate Judge Kathleen M. Tafoya on 11/28/11. Text Only Entry(kmtlc1) (Entered: 11/28/2011)
12/14/2011	46	MINUTE ORDER: The Final Pretrial Conference set for 1/19/2011 is VACATED and RESET to 2/28/2012 at 10:15 AM in Courtroom C201 before Magistrate Judge Kathleen M. Tafoya. The parties shall file their proposed Final Pretrial Order no later than 2/21/2012. By Magistrate Judge Kathleen M. Tafoya on 12/14/11. Text Only Entry (kmtlc1) (Entered: 12/14/2011)
12/14/2011	47	Utility Setting Deadlines: Pursuant to the 46 Minute Order Proposed Pretrial Order due by 2/21/2012. Text Only Entry(ervsl,) (Modified on 12/28/2011 corrected the file date to 12/14/2011)(ervsl,). (Entered: 12/19/2011)
01/26/2012	48	MOTION for Extension of Time to File Response/Reply as to 38 MOTION for Summary Judgment by Plaintiff David Guara. (Fasing, Gregory) (Entered: 01/26/2012)
01/27/2012	49	MEMORANDUM regarding 48 MOTION for Extension of Time to File Response/Reply as to 38 MOTION for Summary Judgment filed by David Guara. Motion referred to Magistrate Judge Kathleen M. Tafoya by Judge William J. Martinez on 01/27/2012. Text Only Entry (wjmssec,) (Entered: 01/27/2012)
01/27/2012	50	MINUTE ORDER granting 48 Motion for Five Business Day Extension of Time to File Brief Opposing Motion for Summary Judgment. Plaintiff shall file his response no later than February 7, 2012. By Magistrate Judge Kathleen M. Tafoya on 1/27/12. Text Only Entry(kmtlc1) (Entered: 01/27/2012)
02/07/2012	51	RESPONSE to 38 MOTION for Summary Judgment filed by Plaintiff David Guara. (Attachments: # 1 Appendix Exhibit List, # 2 Exhibit 1: Deposition of Leroy Perea, # 3 Exhibit 2: Deposition of Robert Sandoval, # 4 Exhibit 3: Deposition of Michael Ralph Trujillo, # 5 Exhibit 4: Memo from Howard RE Vandalism April 11, 2007, # 6 Exhibit 5: Deposition of Jim Bulson, # 7 Exhibit 6: Deposition of Jim Soltis, # 8 Exhibit 7: Letter to Guara from Soltis May 7, 2008, # 9 Exhibit 8: Affidavit of David Guara, # 10 Exhibit 9: Affidavit of Michael Ralph Trujillo, # 11 Exhibit 10: Affidavit of Robert Sandoval, # 12 Exhibit 11: CCRD Ruling June 3, 2009, # 13 Exhibit 12: Photo of Vandalized Locker, # 14 Exhibit 13: Photo of Computer Screen, # 15 Exhibit 14: Statement of Grievance May 13, 2008, # 16 Exhibit 15: Photo of Vandalized Truck, # 17 Exhibit 16: Bulson Memo to City Manager April 14, 2008, # 18 Exhibit 17: Perea Disciplinary Letter to Plaintiff May 9, 2008, # 19 Exhibit 18: Perea Letter Denying Review May 19, 2008, # 20 Exhibit 19: Letter fro Soltis to Plaintiff April 28, 2008, # 21 Exhibit 20: Plaintiff;s 2008 Calendar - Select Pages, # 22 Exhibit 21: Plaintiff's Report to Perea RE Baker June 28, 2009, # 23 Exhibit 22: Plaintiff's Memo to Perea RE Locker Vandalism, # 24 Exhibit 23: Memo from Sandoval RE Bulson May 21, 2008, # 25 Exhibit 24: Memo from Trujillo RE Bulson May 22, 2008, # 26 Exhibit 25: Memo from Guara to Perea RE Vandalized Locker June

		4, 2008, # 27 Exhibit 26: Trinidad Harassment Policy)(Fasing, Gregory) (Modified on 2/8/2012 edited duplicate text)(ervsl,). (Entered: 02/07/2012)
02/14/2012	52	Unopposed MOTION for Extension of Time to File Response/Reply as to 38 MOTION for Summary Judgment by Defendants City of Trinidad, City of Trinidad Fire Department. (Attachments: # 1 Proposed Order (PDF Only) Order)(Kloster, Marni) (Entered: 02/14/2012)
02/14/2012	53	MEMORANDUM regarding 52 Unopposed MOTION for Extension of Time to File Response/Reply as to 38 MOTION for Summary Judgment filed by City of Trinidad Fire Department, City of Trinidad. Motions referred to Magistrate Judge Kathleen M. Tafoya by Judge William J. Martinez on 02/14/2012. Text Only Entry (wjmsec,) (Entered: 02/14/2012)
02/16/2012	54	MINUTE ORDER granting 52 Motion for Extension of Time to File Reply in Support of Summary Judgment. Defendants shall file their reply no later than March 2, 2012. By Magistrate Judge Kathleen M. Tafoya on 2/16/12. Text Only Entry(kmtlc1) (Entered: 02/16/2012)
02/21/2012	55	Proposed Pretrial Order by Plaintiff David Guara. (Attachments: # 1 Appendix Defendant's Witness List, # 2 Appendix Defendant's Exhibit List)(Fasing, Gregory) (Entered: 02/21/2012)
02/27/2012	56	MOTION to Strike <i>Certain of Plaintiff's Exhibits Submitted in Response to Summary Judgment</i> by Defendants City of Trinidad, City of Trinidad Fire Department. (Attachments: # 1 Exhibit A - Courtroom Minutes from 07-cv-01844-PAB-KLM, # 2 Exhibit B - Plaintiff's disclosed photos of skull, # 3 Exhibit C - communications regardingn production of color photographs, # 4 Exhibit D - CCRD Determination of No Probable Cause, # 5 Proposed Order (PDF Only) Order)(Kloster, Marni) (Entered: 02/27/2012)
02/28/2012	57	MINUTE ENTRY for proceedings held before Magistrate Judge Kathleen M. Tafoya: Final Pretrial Conference held on 2/28/2012. (FTR: Courtroom C-201) (kmtcd) (Entered: 02/28/2012)
02/28/2012	58	FINAL PRETRIAL ORDER by Magistrate Judge Kathleen M. Tafoya on 2/28/2012. (kmtcd) (Entered: 02/28/2012)
03/02/2012	59	ORDER: A 5-Day Jury Trial is hereby set to begin on June 25, 2012 at 8:00 a.m. in Courtroom A801. The Final Trial Preparation Conference is set for June 8, 2012 at 3:00 p.m. in Courtroom A801. Counsel are directed to this Court's Revised Practice Standards to ensure compliance with all deadlines triggered by the dates of the Final Trial Preparation Conference and Trial. SO ORDERED by Judge William J. Martinez on 03/02/2012. Text Only Entry (wjmsec,) (Entered: 03/02/2012)
03/02/2012	60	MOTION for Leave to Restrict Document by Defendants City of Trinidad, City of Trinidad Fire Department. (Attachments: # 1 Proposed Order (PDF Only) Order)(Nathan, J.) (Entered: 03/02/2012)
03/02/2012	61	RESTRICTED DOCUMENT - Level 1: by Defendants City of Trinidad, City of Trinidad Fire Department.. (Attachments: # 1 Restricted Attachment Exhibit A-11, # 2 Restricted Attachment Exhibit A-12)(Nathan, J.) (Entered: 03/02/2012)
03/02/2012	62	REPLY to Response to 38 MOTION for Summary Judgment filed by Defendants City of Trinidad, City of Trinidad Fire Department. (Attachments: # 1 Exhibit A-4, # 2 Exhibit A-5, # 3 Exhibit A-6, # 4 Exhibit A-7, # 5 Exhibit A-8, # 6 Exhibit A-9, # 7 Exhibit A-13) (Nathan, J.) (Entered: 03/02/2012)

03/02/2012	63	MEMORANDUM regarding 60 MOTION for Leave to Restrict Document filed by City of Trinidad Fire Department, City of Trinidad. Motion referred to Magistrate Judge Kathleen M. Tafoya by Judge William J. Martinez on 03/02/2012. Text Only Entry (wjmsec,) (Entered: 03/02/2012)
03/02/2012	64	Exhibits in Support of 62 Reply to Response to Motion, by Defendants City of Trinidad, City of Trinidad Fire Department. (Public entry for restricted document 61 filed on 03/02/12) Text only entry (jjhsl,) (Entered: 03/05/2012)
03/07/2012	65	Unopposed MOTION to Reset <i>Trial Date</i> by Defendants City of Trinidad, City of Trinidad Fire Department. (Attachments: # 1 Proposed Order (PDF Only) Order Granting Unopposed Motion to Reset Trial Date)(Kloster, Marni) (Entered: 03/07/2012)
03/09/2012	66	SUPPLEMENT/AMENDMENT to Unopposed Motion to Reset Trial Date 65 by Defendants City of Trinidad, City of Trinidad Fire Department. (Kloster, Marni) Modified on 3/12/2012 to create linkage (lygsl,). (Entered: 03/09/2012)
03/12/2012	67	ORDER granting Defendants' Unopposed Motion to Reset Trial 65 . Defendants' motion is GRANTED for good cause shown. The 5-day Jury Trial set for June 25, 2012 and the Final Trial Preparation Conference set for June 8, 2012 are hereby VACATED. The 5-day Jury Trial is RESET to begin on October 22, 2012 at 8:00 a.m. and the Final Trial Preparation Conference is RESET to October 5, 2012 at 2:30 p.m. in Courtroom A801. Counsel are directed to this Court's Revised Practice Standards to ensure compliance with all deadlines triggered by the dates of the Final Trial Preparation Conference and Trial. SO ORDERED by Judge William J. Martinez on 03/12/2012. Text Only Entry (wjmsec,) (Entered: 03/12/2012)
03/12/2012	68	MINUTE ORDER granting 60 Motion to Restrict Access. Document 61 shall remain restricted at Level 1 pending further order of the court. By Magistrate Judge Kathleen M. Tafoya on 3/12/12. Text Only Entry(kmtlc1) (Entered: 03/12/2012)
03/13/2012	69	OBJECTIONS to <i>DEFENSE EXHIBITS</i> by Plaintiff David Guara. (Fasing, Gregory) (Entered: 03/13/2012)
03/19/2012	70	RESPONSE to 56 MOTION to Strike Certain of Plaintiff's Exhibits Submitted in Response to Summary Judgment filed by Plaintiff David Guara. (Attachments: # 1 Exhibit Fire Chief Perea's Deposition Excerpts, # 2 Exhibit Fire Chief Perea's Deposition Excerpts, Part 2, # 3 Exhibit Defendant's Exhibit List, # 4 Exhibit MEMO, April 11, 2007, # 5 Exhibit Guara Deposition Excerpts Part 2, # 6 Exhibit Plaintiff's Letters to Defense, # 7 Exhibit Capt. Sandoval Deposition Excerpts, # 8 Exhibit Guara Affidavit from Response Opposing Summary Judgment, # 9 Exhibit Capt. Trujillo's Deposition Excerpts)(Fasing, Gregory) (Entered: 03/19/2012)
03/29/2012	71	REPLY to Response to 56 MOTION to Strike <i>Certain of Plaintiff's Exhibits Submitted in Response to Summary Judgment</i> filed by Defendants City of Trinidad, City of Trinidad Fire Department. (Attachments: # 1 Exhibit E - Affidavit of Steven Chavez, # 2 Exhibit F - Plaintiff's Deposition Testimony)(Kloster, Marni) (Entered: 03/29/2012)
05/14/2012	72	MOTION to Strike <i>DEFENSE EXPERTS AND PRECLUDE TRIAL ADMISSIBILITY</i> by Plaintiff David Guara. (Attachments: # 1 Exhibit Defense Expert Disclosures, # 2 Exhibit Garcia Affidavit, # 3 Exhibit Leary Affidavit, # 4 Exhibit Nicoletti Affidavit, # 5 Exhibit Garcia Report, # 6 Exhibit CCRD Decision Letter)(Fasing, Gregory) (Entered: 05/14/2012)

05/15/2012	73	MEMORANDUM regarding 72 MOTION to Strike <i>DEFENSE EXPERTS AND PRECLUDE TRIAL ADMISSIBILITY</i> filed by David Guara. Motion referred to Magistrate Judge Kathleen M. Tafoya by Judge William J. Martinez on 05/15/2012. Text Only Entry (wjmssec,) (Entered: 05/15/2012)
05/16/2012	74	MINUTE ORDER Setting Hearing on Motion: Motion Hearing set for 7/11/2012 at 10:00 AM in Courtroom C201 before Magistrate Judge Kathleen M. Tafoya regarding 72 MOTION to Strike Defense Experts and Preclude Trial Admissibility. By Magistrate Judge Kathleen M. Tafoya on 5/16/12. Text Only Entry (kmtlc1) (Entered: 05/16/2012)
05/18/2012	75	OBJECTIONS to <i>Plaintiff's Trial Exhibits</i> by Defendants City of Trinidad, City of Trinidad Fire Department. (Kloster, Marni) (Entered: 05/18/2012)
06/04/2012	76	RESPONSE to 72 MOTION to Strike <i>DEFENSE EXPERTS AND PRECLUDE TRIAL ADMISSIBILITY</i> Defendants' Response to Plaintiff's Motion to Strike Defense Experts and Preclude Trial Admissibility filed by Defendants City of Trinidad, City of Trinidad Fire Department. (Attachments: # 1 Exhibit Ex. A to Defendants' Response to Plaintiff's Motion to Strike Defense Experts and Preclude Trial Admissibility)(Kloster, Marni) (Entered: 06/04/2012)
06/07/2012	77	ORDER. The City of Trinidad Fire Department is not a separate entity from the City of Trinidad and, therefore, all claims against the City of Trinidad Fire Department are DISMISSED and the City of Trinidad Fire Department is DISMISSED as a party-Defendant to this action. All further filings should omit the City of Trinidad Fire Department from the caption; Defendants Motion to Strike (ECF No. 56) is DENIED as moot; Plaintiffs claim brought under 42 U.S.C. § 1983 has been ABANDONED and judgment shall enter in favor of Defendant on this claim; Defendants Motion for Summary Judgment (ECF No. 38) is GRANTED IN PART and DENIED IN PART; The Clerk shall enter judgment in favor of Defendant on Plaintiffs retaliation claim; and Plaintiffs hostile work environment claim shall proceed to trial against the City of Trinidad. By Judge William J. Martinez on 6/7/2012.(sahsl,) (Entered: 06/07/2012)
06/20/2012	78	REPLY to Response to 72 MOTION to Strike <i>DEFENSE EXPERTS AND PRECLUDE TRIAL ADMISSIBILITY</i> filed by Plaintiff David Guara. (Attachments: # 1 Exhibit Civil Rights Commission Complaint, # 2 Exhibit Civil Rights Commission Settlement Agreement, # 3 Exhibit Declaration of Engineer David Guara)(Fasing, Gregory) (Entered: 06/20/2012)
06/27/2012	79	NOTICE of Change of Address/Contact Information by Marni Nathan Kloster (Kloster, Marni) (Entered: 06/27/2012)
06/28/2012	80	MOTION in Limine by Defendant City of Trinidad. (Attachments: # 1 Exhibit Ex. A to Defendant's Motion in Limine, # 2 Exhibit Ex. B to Defendant's Motion in Limine, # 3 Exhibit Ex. C to Defendant's Motion in Limine, # 4 Exhibit Ex. D to Defendant's Motion in Limine, # 5 Exhibit Ex. E to Defendant's Motion in Limine)(Kloster, Marni) (Entered: 06/28/2012)
07/09/2012	81	MOTION to Reset <i>July 11, 2012 Hearing on Plaintiff's Motion to Strike Defendants' Experts</i> by Defendant City of Trinidad. (Attachments: # 1 Proposed Order (PDF Only)) (Kloster, Marni) (Entered: 07/09/2012)
07/10/2012	82	MEMORANDUM regarding 81 MOTION to Reset <i>July 11, 2012 Hearing on Plaintiff's Motion to Strike Defendants' Experts</i> filed by City of Trinidad. Motion referred to Magistrate Judge Kathleen M. Tafoya by Judge William J. Martinez on 07/10/2012. Text Only Entry (wjmssec,) (Entered: 07/10/2012)
07/10/2012	83	MINUTE ORDER granting 81 Motion to Reset July 11, 2012 Hearing on Plaintiff's Motion to Strike Defendants' Experts. The motion hearing set for July 11, 2012, is

		VACATED. The parties shall place a conference call to chambers, 303-335-2780, no later than July 11, 2012, to reset the hearing. By Magistrate Judge Kathleen M. Tafoya on 7/9/12. Text Only Entry(kmtlc1) (Entered: 07/10/2012)
07/11/2012	84	MINUTE ORDER Setting Hearing on Motion: Motion Hearing set for 8/13/2012 at 9:30 AM in Courtroom C201 before Magistrate Judge Kathleen M. Tafoya regarding 72 MOTION to Strike Defense Experts and Preclude Trial Admissibility. By Magistrate Judge Kathleen M. Tafoya on 7/11/12. Text Only Entry (kmtlc1) (Entered: 07/11/2012)
07/22/2012	85	RESPONSE to 80 MOTION in Limine filed by Plaintiff David Guara. (Attachments: # 1 Exhibit CCRD Decision 2009, # 2 Exhibit Perea Deposition Part 1, # 3 Exhibit Perea Deposition Part 2, # 4 Exhibit Declaration of Plaintiff Guara, # 5 Exhibit Plaintiff's Responses to Request for Production, # 6 Exhibit Guara Deposition Excerpts Part 1, # 7 Exhibit Declaration of Gregory Fasing, # 8 Exhibit Plaintiff's Initial Disclosures, # 9 Exhibit Guara Deposition Excerps Part 2)(Fasing, Gregory) (Entered: 07/22/2012)
07/24/2012	86	MOTION for Leave to File Excess Pages by Plaintiff David Guara. (Fasing, Gregory) (Entered: 07/24/2012)
07/25/2012	87	ORDER granting 86 Plaintiff's Unopposed Motion to Refile Response Opposing Defense Motion in Limine 80 . Plaintiff is GRANTED leave to refile his Response to the Defendant's Motion in Limine, said Response not to exceed 5 pages. SO ORDERED by Judge William J. Martinez on 07/25/2012. Text Only Entry(wjmsec,) (Entered: 07/25/2012)
07/26/2012	88	RESPONSE to 80 MOTION in Limine (<i>Revised</i>) filed by Plaintiff David Guara. (Attachments: # 1 Exhibit CCRD Decision Letter, # 2 Exhibit Chief Perea Deposition Excerpts No. 1, # 3 Exhibit Chief Perea Deposition Excerpts No. 2, # 4 Exhibit Declaration of Plaintiff Guara, # 5 Exhibit Plaintiff's Responses to Requests for Production, # 6 Exhibit Plaintiff Guara's Deposition Excerpts No. 1, # 7 Exhibit Declaration of Gregory Fasing, # 8 Exhibit Plaintiff's Initial Disclosures, # 9 Exhibit Plaintiff Guara's Deposition Excerpts No. 2)(Fasing, Gregory) (Entered: 07/26/2012)
08/13/2012	89	COURTROOM MINUTES/MINUTE ENTRY for proceedings held before Magistrate Judge Tafoya: Motion Hearing held on 8/13/2012. 72 Plaintiff's Motion to Strike Defense Experts and Preclude Trial Admissibility is taken under advisement, written order to issue. FTR: KMT Courtroom C201. (bnbcd,) Modified on 8/20/2012 to correct Magistrate Judge (jjhsl,). (Entered: 08/14/2012)
08/23/2012	90	ORDER: This matter is before the Court <i>sua sponte</i> . Due to a conflict in the Court's calendar the Final Trial Preparation Conference set for October 5, 2012 at 2:30 p.m. is hereby VACATED and RESET to <u>October 4, 2012, at 2:30 p.m.</u> in Courtroom A801. Counsel are directed to this Court's Revised Practice Standards to ensure compliance with all deadlines triggered by the dates of the Final Trial Preparation Conference and Trial. SO ORDERED by Judge William J. Martinez on 08/23/2012. Text Only Entry (wjmsec,) (Entered: 08/23/2012)
08/31/2012	91	ORDER granting in part and denying in part 80 Defendants Motion in Limine with the specific parameters of the Courts evidentiary rulings set forth above, by Judge William J. Martinez on 8/31/2012.(ervsl,) (Entered: 08/31/2012)
08/31/2012	92	MOTION in Limine by Plaintiff David Guara. (Attachments: # 1 Exhibit Garcia Report July 2008, # 2 Exhibit Nicoletti Report April 2009)(Fasing, Gregory) (Entered: 08/31/2012)
09/01/2012	93	NOTICE of D.C.COLO.LCrR 7.1(A) CERTIFICATION by Plaintiff David Guara. (Fasing, Gregory) (Modified on 9/4/2012 This is a Notice and not a Motion)(ervsl,). (Entered: 09/01/2012)

09/04/2012	94	ORDER: This matter is before the Court on 92 Plaintiff's Motion in Limine. Defendant's response to the Motion shall be filed by September 10, 2012. SO ORDERED by Judge William J. Martinez on 9/4/2012. Text Only Entry (wjmlc1,) (Entered: 09/04/2012)
09/07/2012	95	MOTION for Leave to File Excess Pages by Defendant City of Trinidad. (Attachments: # 1 Exhibit Ex. 1 Email Confirmation for Excess Pages, # 2 Exhibit 2 Response to Plaintiff's Motion in Limine, # 3 Exhibit A to Response - Correspondence on Plaintiff's claims and issues, # 4 Exhibit B to Response - Testimony of Soltis and Bulson, # 5 Exhibit C to Response - Sandoval and Trujillo Testimony, # 6 Exhibit D to Response - 8/8/08CCRD Request for Information, # 7 Exhibit E to Response - Affidavits of Garcia and Leary, # 8 Exhibit F - Testimony on Garcia and Jorgenson Investigations, # 9 Exhibit G to Response - Jorgenson's investigation, # 10 Exhibit H to Response - Plaintiff's testimony on emotional distress, # 11 Exhibit I to Response - Plaintiff's testimony on Dr. Nicoletti anguish)(Kloster, Marni) (Entered: 09/07/2012)
09/07/2012	96	NOTICE re 95 MOTION for Leave to File Excess Pages by Defendant City of Trinidad (Attachments: # 1 Exhibit Exhibit A - Fasing Confirmation Letter)(Kloster, Marni) (Entered: 09/07/2012)
09/07/2012	97	ORDER granting Defendant's Unopposed Motion Seeking Leave to File a Response to Plaintiff's Motion in Limine of Up to Five Pages 95 . Defendant's Motion is GRANTED for good cause shown. Defendant's Response to the Plaintiff's Motion in Limine is accepted as filed [95-2]. SO ORDERED by Judge William J. Martinez on 09/07/2012. Text Only Entry(wjmsec,) (Entered: 09/07/2012)
09/07/2012	98	RESPONSE to 92 MOTION in Limine filed by Defendant City of Trinidad. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C, # 4 Exhibit D, # 5 Exhibit E, # 6 Exhibit F, # 7 Exhibit G, # 8 Exhibit H, # 9 Exhibit I)(ervsl,) (Entered: 09/10/2012)
09/14/2012	99	Partial TRANSCRIPT of Motions Hearing - Partial Transcript held on 08/13/2012 before Magistrate Judge Tafoya. Pages: 1-120. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 12/17/2012. (Avery Woods Reporting,) (Entered: 09/14/2012)
09/20/2012	100	NOTICE <i>Regarding Jury Instructions</i> by Defendant City of Trinidad (Nathan, J.) (Entered: 09/20/2012)
09/20/2012	101	Proposed Jury Instructions <i>Stipulated</i> by Plaintiff David Guara. (Fasing, Gregory) (Entered: 09/20/2012)
09/20/2012	102	Proposed Jury Instructions <i>Disputed</i> by Plaintiff David Guara. (Fasing, Gregory) (Entered: 09/20/2012)
09/25/2012	103	MOTION to Amend/Correct/Modify 58 Pretrial Order by Plaintiff David Guara. (Attachments: # 1 Exhibit Trinidad Police Report June 11, 2008, # 2 Exhibit Truck Damage Photos, # 3 Exhibit CCRD Position Statement Oct. 2008, # 4 Exhibit Guara Deposition June 1, 2011, # 5 Exhibit Guara Affidavit Feb. 2012, # 6 Exhibit Letter to

		Defense Sept. 20, 2012, # 7 Exhibit Letter to Defense Sept. 24, 2012)(Fasing, Gregory) (Entered: 09/25/2012)
09/25/2012	104	MEMORANDUM regarding 103 MOTION to Amend/Correct/Modify 58 Pretrial Order filed by David Guara. Motion referred to Magistrate Judge Kathleen M. Tafoya by Judge William J. Martinez on 09/25/2012. Text Only Entry (wjmsc,) (Entered: 09/25/2012)
09/26/2012	105	ORDER: This matter is before the Court on 103 Plaintiff's Motion to Amend Final Pretrial Order. Defendant shall file any response not later than Monday, October 1, 2012. No reply will be permitted. SO ORDERED by Judge William J. Martinez on 9/26/2012. Text Only Entry (wjmlc1,) (Entered: 09/26/2012)
09/27/2012	106	ORDER that Plaintiffs 72 Motion to Strike Defense Experts and Preclude Trial Admissibility is GRANTED in part and DENIED in part. Dr. Nicoletti is stricken as an expert witness. The motion is denied in all other respects. By Magistrate Judge Kathleen M. Tafoya on 9/27/2012.(ervsl,) (Entered: 09/27/2012)
09/27/2012	107	OBJECTIONS to <i>Plaintiff's Disputed Jury Instructions and Verdict Form</i> by Defendant City of Trinidad. (Kloster, Marni) (Entered: 09/27/2012)
09/27/2012	108	Proposed Voir Dire by Defendant City of Trinidad. (Kloster, Marni) (Entered: 09/27/2012)
09/27/2012	109	Witness List by Defendant City of Trinidad. (Kloster, Marni) (Entered: 09/27/2012)
09/27/2012	110	Exhibit List by Defendant City of Trinidad. (Kloster, Marni) (Entered: 09/27/2012)
09/27/2012	111	NOTICE to the Court of Issues Upon Which Discussion is Requested At the Final Preparation Conference by Defendant City of Trinidad (Kloster, Marni) (Entered: 09/27/2012)
09/27/2012	112	Witness List by Plaintiff David Guara. (Fasing, Gregory) (Entered: 09/27/2012)
09/27/2012	113	Proposed Voir Dire by Plaintiff David Guara. (Fasing, Gregory) (Entered: 09/27/2012)
09/27/2012	114	Proposed Jury Instructions <i>Objections</i> by Plaintiff David Guara. (Fasing, Gregory) (Entered: 09/27/2012)
09/27/2012	115	NOTICE <i>Special Issues List</i> by Plaintiff David Guara (Fasing, Gregory) (Entered: 09/27/2012)
09/27/2012	116	Exhibit List by Plaintiff David Guara. (Fasing, Gregory) (Entered: 09/27/2012)
09/28/2012	117	ORDER: This matter is before the Court on 115 Plaintiff's Special Issue List in which Plaintiff states that he intends to "immediately" file objections to 106 Magistrate Judge Tafoya's ruling on his 72 Motion to Strike Defendant's experts. To allow the Court time to address these issues in advance of the trial, any appeal of the Magistrate Judge's Order must be filed no later than Tuesday October 2, 2012 . Any response to the appeal must be filed by Friday October 5, 2012 . No reply will be permitted. SO ORDERED by Judge William J. Martinez on 9/28/2012. Text Only Entry (wjmlc1,) (Entered: 09/28/2012)
09/30/2012	118	OBJECTION/Appeal of Magistrate Judge Decision to District Court re 106 Order on Motion to Strike, by Plaintiff David Guara. (Attachments: # 1 Exhibit Daubert Hearing Transcript Aug. 13, 2012)(Fasing, Gregory) (Entered: 09/30/2012)
10/01/2012	119	RESPONSE to 103 MOTION to Amend/Correct/Modify 58 Pretrial Order filed by Defendant City of Trinidad. (Attachments: # 1 Exhibit A - Written Discovery to Plaintiff, # 2 Exhibit B - Plaintiff's Responses to Discovery, # 3 Exhibit C - Plaintiff's Testimony, # 4 Exhibit D - 9/25/12 Letter, # 5 Exhibit E - Plaintiff's Initial Disclosures)(Kloster, Marni) (Entered: 10/01/2012)

10/02/2012	120	ORDER: This matter is before the Court on 118 Plaintiff's Appeal of the Magistrate Judge's ruling on Plaintiff's 106 Motion to Strike. Plaintiff filed his appeal three days before the Court's deadline. Accordingly, Defendant's response to Plaintiff's appeal shall be filed no later than 3:00 p.m. on Wednesday, October 3, 2012. SO ORDERED by Judge William J. Martinez on 10/2/2012. Text Only Entry (wjmlc1,) (Entered: 10/02/2012)
10/02/2012	121	OBJECTION/Appeal of Magistrate Judge Decision to District Court re 106 Order on Motion to Strike, by Defendant City of Trinidad. (Attachments: # 1 Exhibit A - Correspondence, # 2 Exhibit B - Hearing Testimony)(Kloster, Marni) (Entered: 10/02/2012)
10/02/2012	122	OBJECTIONS to 116 Exhibit List by Defendant City of Trinidad. (Kloster, Marni) (Entered: 10/02/2012)
10/02/2012	123	ORDER: This matter is before the Court on 121 Defendant's Appeal of Magistrate Judge Tafoya's ruling on Plaintiff's Motion to Strike. Plaintiff shall respond to Defendant's Appeal not later than 3:00 p.m. on Wednesday October 3, 2012. In Plaintiff's response, he should include a statement indicating whether his placement on paid leave and referral to Dr. Nicoletti for a risk assessment forms part of the basis of the alleged discrimination and/or whether Plaintiff is seeking damages related to these acts. SO ORDERED by Judge William J. Martinez on 10/2/2012. Text Only Entry (wjmlc1,) (Entered: 10/02/2012)
10/02/2012	124	ORDER: In order to more efficiently use the time available for courtroom settings the Final Trial Preparation Conference set for 2:30 p.m. on Thursday October 4, 2012 is RESET to 4:00 p.m. the same day . SO ORDERED by Judge William J. Martinez on 10/2/2012. Text Only Entry (wjmlc1,) (Entered: 10/02/2012)
10/02/2012	125	OBJECTIONS to <i>Defense Exhibits (Revised)</i> by Plaintiff David Guara. (Fasing, Gregory) (Entered: 10/02/2012)
10/03/2012	126	RESPONSE to 118 Objection/Appeal of Magistrate Judge Decision filed by Defendant City of Trinidad. (Attachments: # 1 Exhibit A - Judge Garcia's CV, # 2 Exhibit B - Timothy Leary's CV, # 3 Exhibit C - Hearing Testimony)(Kloster, Marni) (Entered: 10/03/2012)
10/03/2012	127	TRANSCRIPT of Motions Hearing held on 08/13/2012 before Magistrate Judge Tafoya. Pages: 1-173. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 1/7/2013. (Avery Woods Reporting,) (Entered: 10/03/2012)
10/03/2012	128	RESPONSE to 121 Objection/Appeal of Magistrate Judge Decision filed by Plaintiff David Guara. (Fasing, Gregory) (Entered: 10/03/2012)
10/04/2012	129	NOTICE <i>Regarding Jury Instructions with Disputed Jury Instructions and Disputed Verdict Forms</i> by Defendant City of Trinidad (Kloster, Marni) (Entered: 10/04/2012)

10/04/2012	133	MINUTE ENTRY for proceedings held before Judge William J. Martinez: Final Trial Preparation Conference held on October 4, 2012. ORDERED: 1) Plaintiff's Motion to Amend Final Pretrial Order 103 is DENIED. ORDERED: 2) Defendant's Objection to Magistrate Judge's Order 121 is OVERRULED in part and Plaintiff's Objection to Magistrate Judge's Order 118 is SUSTAINED in part. With respect to John Garcia and Timothy Leary, the Court REVERSES Magistrate Judge Tafoya's ruling 106 and GRANTS plaintiff's motion to strike to the extent it seeks to preclude John Garcia's and Timothy Leary's testimony as expert witnesses. Therefore, the defendant will be permitted to call Mr. Garcia and Mr. Leary as witnesses, but the Court will not permit them to be endorsed as experts. Dr. Nicoletti will not be permitted to testify at all. ORDERED: 3) Plaintiff's Motion in Limine 92 is DENIED IN PART AND GRANTED IN PART. ORDERED: 4) No trial briefs shall be filed. ORDERED: 5) Counsel shall exchange their Order of Witnesses no later than 5:00 p.m. on Thursday, October 18, 2012. ORDERED: 6) Counsel shall to meet face to face no later than Monday, October 8, 2012 to go through their Exhibit Lists, stipulating, to the maximum extent possible, to as many exhibits as possible. Both parties shall file a final revised exhibit list, which indicate stipulations, no later than Tuesday, October 16th, 2012. ORDERED: 7) The defense shall refile its Exhibit List in the format set forth in the Court's Revised Practice Standards. ORDERED: 8) Defendant shall file its proposed jury instructions via CM/ECF no later than tomorrow. ORDERED: 9) The parties shall file their own statement of the case instruction on CM/ECF by tomorrow. ORDERED: 10) Plaintiff shall number his jury instructions as per the Court's Practice Standards, and file them via CM/ECF no later than Tuesday, October 9, 2012. ORDERED: 11) Counsel shall be present on Monday, October 22, 2012 at 8:00 a.m. Court Reporter: Gwen Daniel. (wjmc,) (Modified on 10/10/2012 to correct docket references pursuant to request from Judge's Chambers (alvsl).) (Entered: 10/09/2012)
10/04/2012	134	ORDER OVERRULING 121 APPEAL OF MAGISTRATE JUDGE DECISION to District Court pursuant to 133 Minute Entry by Judge William J. Martinez on 10/04/12. Text Only Entry. (alvsl) (Entered: 10/10/2012)
10/05/2012	130	Proposed Jury Instructions <i>Statement of the Case</i> by Plaintiff David Guara. (Attachments: # 1 Proposed Document Plaintiff's Statement of the Case)(Fasing, Gregory) (Entered: 10/05/2012)
10/05/2012	131	Proposed Jury Instructions <i>Disputed Statement of the Case Jury Instruction No. A</i> by Defendant City of Trinidad. (Attachments: # 1 Proposed Document Statement of the Case Jury Instruction No. A, Versions 1 and 2)(Kloster, Marni) (Entered: 10/05/2012)
10/05/2012	132	Proposed Jury Instructions <i>Revised and Numbered</i> by Plaintiff David Guara. (Attachments: # 1 Proposed Document Plaintiff's Disputed Jury Instructions Numbered) (Fasing, Gregory) (Entered: 10/05/2012)
10/16/2012	135	Exhibit List <i>Final</i> by Defendant City of Trinidad. (Kloster, Marni) (Entered: 10/16/2012)
10/16/2012	136	Exhibit List <i>Updated October 8, 2012</i> by Plaintiff David Guara. (Fasing, Gregory) (Entered: 10/16/2012)
10/17/2012	137	OBJECTIONS to 136 Exhibit List by Defendant City of Trinidad. (Kloster, Marni) (Entered: 10/17/2012)
10/18/2012	138	NOTICE of Proposed Order of Defense Witnesses by Defendant City of Trinidad (Attachments: # 1 Exhibit A - Letter of Order of Defense Witnesses)(Kloster, Marni) (Entered: 10/18/2012)
10/18/2012	139	Witness List (<i>Order of Witnesses</i>) by Plaintiff David Guara. (Fasing, Gregory) (Entered: 10/18/2012)

10/18/2012	140	NOTICE OFFER OF PROOF RE: MICHELLE CASTILLO AND JANE CARLOCK by Plaintiff David Guara (Fasing, Gregory) (Entered: 10/18/2012)
10/19/2012	141	MOTION for Issuance /Tender an Additional/Revised Jury Instruction by Defendant City of Trinidad. (Attachments: # 1 Exhibit A - 10/17/12 Letter, # 2 Exhibit B - Plaintiff's Responses to Requests for Admissions, # 3 Exhibit C - Proposed Stipulation Jury Instruction)(Kloster, Marni) (Entered: 10/19/2012)
10/19/2012	142	RESPONSE to 140 Notice (Other) by Defendant City of Trinidad. (Attachments: # 1 Exhibit A - Jane Carlock Deposition Testimony, # 2 Exhibit B - Michelle Castillo Deposition Testimony, # 3 Exhibit C - Correspondence on Castillo Memo)(Kloster, Marni) (Entered: 10/19/2012)
10/19/2012	143	ORDER denying 141 Defendant's Motion to Tender an Additional/Revised Jury Instruction. Defendant asks the Court to amend the previously filed stipulations by adding a number of facts that were admitted by Plaintiff in response to Defendant's requests for admission. The Court views an admission as procedurally different than a stipulation. Since the Plaintiff has not stipulated to the addition of these facts to the stipulations to be read to prospective jurors during the jury selection process, the Court will not grant the specific relief requested in Defendant's motion. Defendant is, of course, free to use Plaintiff's admissions for impeachment or other appropriate purposes during trial, and the Court is open to amending the stipulations it reads to the jury in its final instructions if the parties can, at any point hereafter, stipulate to such additional facts. SO ORDERED by Judge William J. Martinez on 10/19/2012. Text Only Entry(wjmlc1,) (Entered: 10/19/2012)
10/22/2012	144	MINUTE ENTRY for Jury Trial - Day One held before Judge William J. Martinez on 10/22/2012. Trial Continued. Court Reporter: Gwen Daniel. (wjmc1,) (Entered: 10/23/2012)
10/23/2012	145	MINUTE ENTRY for proceedings held before Judge William J. Martinez: Jury Trial Day Two held on 10/23/2012, Court Reporter: Gwen Daniel. (ervsl,) (Entered: 10/24/2012)
10/24/2012	146	MINUTE ENTRY for Jury Trial - Day Three held before Judge William J. Martinez on 10/24/2012. Trial continued. Court Reporter: Gwen Daniel. (eseam) (Entered: 10/25/2012)
10/25/2012	147	MINUTE ENTRY for Jury Trial - Day Four held before Judge William J. Martinez on 10/25/2012. Defendant's Rule 50 motion is denied. Trial concluded. JURY VERDICT received. Court Reporter: Gwen Daniel. (Attachments: # 1 Strike Sheet, # 2 Plaintiff's Exhibit List, # 3 Defendant's Exhibit List, # 4 Jury Instructions, # 5 Jury Note, # 6 Verdict Form) (eseam) (Entered: 10/26/2012)
10/25/2012	148	STIPULATION AND ORDER REGARDING CUSTODY OF EXHIBITS AND/OR DEPOSITIONS re: 147 , by Judge William J. Martinez on 10/25/2012. (eseam) (Entered: 10/26/2012)
10/30/2012	149	JUDGMENT in favor of City of Trinidad against David Guara re: 147 Jury Trial - Completed, Approved by Judge William J. Martinez on 10/30/201, by Edward P. Butler, Deputy Clerk (ervsl,) (Entered: 10/30/2012)
11/13/2012	150	Proposed Bill of Costs by Defendant City of Trinidad. (Attachments: # 1 Affidavit Affidavit of Marni Nathan Kloster for Bill of Costs, # 2 Continuation of Main Document Fees of the Court Reporter, # 3 Continuation of Main Document Fees for witnesses, # 4 Continuation of Main Document Fees for exemplification and copies of papers, # 5 Continuation of Main Document Docket fees, Costs incident to taking depositions and Other costs)(Kloster, Marni) (Entered: 11/13/2012)

11/25/2012	151	MOTION for New Trial by Plaintiff David Guara. (Attachments: # 1 Exhibit CD Filed Conventionally, # 2 Exhibit Transcript Audio Recording Oct. 30, 2012, # 3 Exhibit Guara Declaration, # 4 Exhibit Fasing Declaration)(Fasing, Gregory) (Entered: 11/25/2012)
11/26/2012	152	Exhibit 1 CD Audio Transcript in Support of 151 MOTION for New Trial by Plaintiff David Guara. (ervsl,) (Entered: 11/26/2012)
11/26/2012	153	Conventionally Submitted Material : Exhibit 1 Audio File CD to Exhibits 152 , MOTION for New Trial 151] by Plaintiff David Guara Text Only Entry Material placed in oversized area B-1-8 of the Clerk's Office. (ervsl,) (Entered: 11/26/2012)
11/26/2012	154	MOTION for Order to <i>IMMEDIATELY CONTINUE WITNESS SEQUESTRATION ORDER TO PREVENT WITNESS CONTACT PENDING DECISION ON POST TRIAL MOTIONS</i> by Plaintiff David Guara. (Fasing, Gregory) (Entered: 11/26/2012)
11/27/2012	155	ORDER granting 154 Plaintiffs Motion for Immediate Continuation of Witness Sequestration Order. This Order shall apply to all parties, all counsel, and all trial witnesses, to the same extent as the Courts original Sequestration Order. Violation of this Order by any party, any attorney or any trial witness may subject the violator to sanctions, including but not limited to being held in contempt of Court, by Judge William J. Martinez on 11/27/2012.(ervsl,) (Entered: 11/27/2012)
11/27/2012	156	MOTION for Reconsideration re 155 Order on Motion for Order, by Defendant City of Trinidad. (Attachments: # 1 Proposed Order (PDF Only) Order Granting Clarification in Response to Defendant's Motion to Reconsider, # 2 Proposed Order (PDF Only) Order Granting Defendant's Motion to Reconsider Plaintiff's Motion for Immediate Continuation of Witness Sequestration Order to Prevent Witness Contact Pending Decision on Post Trial Motions)(Nathan, J.) (Entered: 11/27/2012)
12/13/2012	157	RESPONSE to 151 MOTION for New Trial filed by Defendant City of Trinidad. (Attachments: # 1 Exhibit A - Ortiz Trial Testimony, # 2 Exhibit B - Garcia Trial Testimony, # 3 Exhibit C - Case Law, # 4 Exhibit D - Castillo Trial Testimony, # 5 Exhibit E - Affidavit of Marni Nathan Kloster, # 6 Exhibit F - Juror Trujillo Challenge, # 7 Exhibit G - Leary Trial Testimony, # 8 Exhibit H - EEOC Trial References)(Nathan, J.) (Entered: 12/13/2012)
12/21/2012	158	TRANSCRIPT of Trial Testimony of Jane Carlock and Michelle Castillo held on 10/23/2012 before Judge Martinez. Pages: 1-40. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 3/25/2013. (Daniel, Gwen) (Entered: 12/21/2012)
12/21/2012	159	TRANSCRIPT of Trial Testimony of David Bacharach held on 10/24/2012 before Judge Martinez. Pages: 1-19. <P> NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts

		document at www.cod.uscourts.gov. </P> Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 3/25/2013. (Daniel, Gwen) (Entered: 12/21/2012)
12/31/2012	160	MOTION for Extension of Time to File Response/Reply as to 151 MOTION for New Trial by Plaintiff David Guara. (Fasing, Gregory) (Entered: 12/31/2012)
01/02/2013	161	ORDER granting 160 Plaintiff's Unopposed Motion for Extension of Time to Reply to Motion for New Trial 151 . The Plaintiff's Motion is GRANTED for good cause shown. Plaintiff's deadline to file his Reply in support of his Motion for New Trial is extended up to and including January 4, 2013. SO ORDERED by Judge William J. Martinez on 01/02/2013. Text Only Entry(wjmsec,) (Entered: 01/02/2013)
01/02/2013	162	ORDER: This matter is before the Court on Defendant's 156 Motion for Reconsideration. Plaintiff shall file a response to the Motion to Reconsider by January 9, 2013; no Reply will be permitted. SO ORDERED by Judge William J. Martinez on 1/2/2013. Text Only Entry (wjmlc1,) (Entered: 01/02/2013)
01/04/2013	163	REPLY to Response to 151 MOTION for New Trial filed by Plaintiff David Guara. (Fasing, Gregory) (Entered: 01/04/2013)
01/07/2013	164	MOTION to Withdraw as Attorney by Plaintiff David Guara. (Attachments: # 1 Proposed Order (PDF Only))(Carleo, James) (Entered: 01/07/2013)
01/07/2013	165	ORDER: This matter is before the Court on Defendant's 156 Motion for Reconsideration of the Court's Order Granting Plaintiff's Motion for Immediate Continuation of Witness Sequestration Order to Prevent Witness Contact Pending Decision on Post-Trial Motions. The Court previously ordered Plaintiff to respond to the Motion by January 9, 2013. Defendant may file a reply by January 16, 2013. SO ORDERED by Judge William J. Martinez on 1/7/2013. Text Only Entry (wjmlc1,) (Entered: 01/07/2013)
01/07/2013	166	MEMORANDUM regarding 164 MOTION to Withdraw as Attorney filed by David Guara. Motion referred to Magistrate Judge Kathleen M. Tafoya by Judge William J. Martinez on 01/07/2013. Text Only Entry (wjmsec,) (Entered: 01/07/2013)
01/07/2013	167	MINUTE ORDER granting 164 Motion to Withdraw as Attorney for Plaintiff. Attorney James A. Carleo terminated, by Magistrate Judge Kathleen M. Tafoya on 1/7/2013.(ervsl,) (Entered: 01/07/2013)
01/15/2013	168	ORDER: This matter is before the Court on Defendant's 156 Motion for Reconsideration. Plaintiff failed to respond to the Motion for Reconsideration by the deadline prescribed by D.C.COLO.LCivR 7.1(C). The Court then ordered Plaintiff to respond to the Motion by January 9, 2013 and Plaintiff again missed this deadline. In fact, to date, Plaintiff has failed to file any opposition to the Motion for Reconsideration. Therefore, the Court deems the Motion for Reconsideration confessed, <i>see Murray v. City of Tehlequah</i> , 312 F.3d 1196, 1199 (10th Cir. 2002), and Defendant's 156 Motion for Reconsideration is GRANTED. The Court's November 27, 2012 155 Order Granting Plaintiff's Motion for Immediate Continuation of Witness Sequestration is VACATED. Additionally, because defense counsel was not able to consult with the trial witnesses in dispute before preparing Defendant's opposition to the 151 Motion for New Trial, the Court will permit Defendant the opportunity to file a Sur-Reply. Any such Sur-Reply must be filed by January 29, 2013. SO ORDERED by Judge William J. Martinez on 1/15/2013. Text Only Entry(wjmlc1,) (Entered: 01/15/2013)
01/15/2013	169	MOTION to Clarify by Plaintiff David Guara. (Fasing, Gregory) (Entered: 01/15/2013)

01/16/2013	170	ORDER denying 169 Motion to Clarify for lack of good cause shown. Having reviewed the Motion, the Court finds that Plaintiff has failed to establish good cause for his failure on two occasions to respond to Defendant's 156 Motion for Reconsideration. The single sentence at the end of Plaintiff's Reply Brief in support of his Motion for New Trial does not suffice. The Court also finds that Plaintiff has failed to establish good cause for the need to continue the Court's prior sequestration order. Thus, the Court's prior (168) Order vacating the witness sequestration remains in effect, and Plaintiff's instant motion is DENIED. SO ORDERED by Judge William J. Martinez on 1/16/2013. Text Only Entry(wjmlc1,) (Modified on 1/16/2013 edited to reflect Plaintiff's Instant Motion)(ervsl,). (Entered: 01/16/2013)
01/16/2013	171	Costs Taxed in amount of \$ 12,627.57 against Plaintiff (Attachments: # 1 Attachment) (ervsl,) (Modified on 1/17/2013 corrected the amount awarded)(ervsl,). (Entered: 01/16/2013)
01/28/2013	172	SURREPLY re 151 MOTION for New Trial filed by Defendant City of Trinidad. (Attachments: # 1 Exhibit I - Affidavits of Ortiz, Garcia and Howard)(Nathan, J.) (Entered: 01/28/2013)
02/20/2013	173	ORDER denying 151 Plaintiffs Motion for New Trial and Alternate Relief, by Judge William J. Martinez on 2/20/2013.(ervsl,) (Entered: 02/20/2013)

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